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**JUSTIFICATION & APPROVAL FOR FEDERAL ACQUISITION REGULATION
SUBPART 16.5 ACQUISITIONS
EXCEPTION TO FAIR OPPORTUNITY**

Multiple Award Contract

Orders under Fair Opportunity

Federal Acquisition Regulation (FAR) 16.505(b), Defense FAR Supplement 216.505(b),
Procedures, Guidance, and Information 216.505(b)

Universal Purchase Request Number: HC110426MPC0093

Joint Warfighting Cloud Capability (JWCC) Contract Number: HC105023D0005

Task Order (TO) Number: HC105026F0008

Procurement Title: Olympus Analytics Infrastructure

Estimated Value: [REDACTED]

Statutory and Regulatory Authority: 10 United States Code (U.S.C.) 3204(a) and FAR
16.505(b)(2)(i)(B)

EXCEPTION TO FAIR OPPORTUNITY

Number: JA26-036

Upon the basis of the following justification, I, as the Procuring Activity Competition Advocate (PACA), hereby approve this exception to fair opportunity pursuant to the Statutory Authority of 10 U.S.C. 3204(a) and Regulatory Authority of FAR 16.505(b)(2)(i)(B).

1. REQUESTING AGENCY AND CONTRACTING OFFICE:

Requesting Agency:

Defense Information Systems Agency (DISA) / J9 - Hosting & Compute (HC)
2530 Crystal Drive, Suite 3E26
Arlington, VA 22202

Contracting Activity:

DISA / Defense Information Technology Contracting Organization (DITCO) / Cloud
Capabilities Section (PS8511)
2300 East Drive
Scott Air Force Base, IL 62225-5406

2. NATURE/DESCRIPTION OF ACTION(S):

This action is to issue a firm-fixed-price TO against the JWCC Indefinite Delivery/Indefinite Quantity Contract for Olympus Analytics Infrastructure. This TO will be issued directly to Amazon Web Services, Inc (AWS). The anticipated period of performance is a base period of 12-months with one, 12-month option period and one, 10-month option period. The total estimated value is [REDACTED] which will be funded by Defense Working Capital funds.

Controlled by: DISA

Controlled By: J923

CUI Category: PROCURE

Distribution/Dissemination Control: FEDCON

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Olympus Analytics Infrastructure

3. DESCRIPTION OF SUPPLIES/SERVICES:

Department of Defense (DoD) Olympus Analytics Infrastructure is an emerging managed hosting platform and common services provider in the commercial cloud. The goal of DoD Olympus Analytics Infrastructure is to help mission partners adopt the commercial cloud more rapidly and efficiently while leveraging analytics.

4. SUPPORTING RATIONALE, INCLUDING A DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF AN EXCEPTION TO FAIR OPPORTUNITY:

(a) Exception to Fair Opportunity.

FAR 16.505(b)(2)(i)(B) - Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

(b) Description of the Justification.

AWS is the only cloud service provider (CSP) uniquely qualified to be the advanced analytics tool provider within DoD Olympus Analytics Infrastructure due to its unique capabilities in Generative Artificial Intelligence (GenAI), Machine Learning and Internet of Things (IoT). For GenAI, the Government has a requirement to host a diverse number of models, including third-party models (e.g. Meta) which only AWS provides at the required Impact Level (IL) 5.

(c) Justification.

(1) Minimum Government requirements.

To meet the Government's minimum requirement of hosting a diverse suite of premier Large Language Models (LLM), including third party models (e.g. Meta) within a certified IL5 environment. The GenAI, Machine Learning, Serverless Data Integration, Object Storage, and IoT, platforms must also be engineered for secure and reliable interoperability with other DoD tenants. This will facilitate seamless identity federation, attribute-based access control, and cross-organization collaboration while preventing unauthorized data access and exfiltration.

(2) Proposed sole source contractor. AWS

(3) Discussion regarding the cause of the sole source situation.

The only CSP capable of providing the specific technical capabilities and platform compatibilities is AWS. The Government has a critical requirement to host a diverse range of GenAI models. AWS is the only CSP that offers a diverse set of LLMs, including third party models required at IL5 security level. This specific, essential feature

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is unavailable from any other CSP. Furthermore, the current environment and its dependencies cannot be refactored or transitioned to another platform without incurring unacceptable delays and operational risk. Attempting to use a different CSP would also require duplicating existing infrastructure and development investments, thereby driving the Government's need for compatibility with existing infrastructure to continue seamless support for the Warfighter.

(4) Demonstration of unique source.

AWS is the only contractor capable of fulfilling the DoD's requirement of an advanced analytics platform for the Olympus program. Market research confirms that while other JWCC CSPs have IL5 environments, only AWS currently provides this unique and highly specialized combination of third-party models at the required security level. Thus, AWS is the only source capable of meeting the Government's essential needs of a diverse set of LLMs at the IL5 security level. Using another CSP would require a complete re-platforming of existing infrastructure and retraining of personnel, resulting in an estimated [REDACTED] in duplicated costs and a delay of 18-24 months in offering this new service. Continuing with AWS avoids this disruption and ensures immediate access to the only platform that can meet the DoD's mission-critical GenAI requirements. Thus, AWS is the only CSP capable of meeting the Government's minimum needs.

(5) Procurement discussion.

Based on the Additional Research to Support an Exception to Fair Opportunity that was sent to the four JWCC CSPs on September 29, 2026, the only CSP that is currently capable of meeting the minimum needs of the Government is AWS. AWS provides the unique ability to host a diverse suite of premier LLMs, including third-party LLMs within a certified IL5 environment.

(6) Impact.

Using a CSP other than AWS is not feasible because no other CSP offers services at IL5 or a GenAI Platform that can incorporate third-party LLM.

If the exception to fair opportunity is not approved and a different CSP were to be selected, Olympus would have to be refactored and delayed, impacting software modernization efforts across the department, and negatively impacting the warfighter user experience. DoD Olympus has already been built with approximately 25,000 lines of infrastructure as code required for its automation by AWS. This automation code is not portable between CSPs. As such, selecting a different CSP would require that code to be redeveloped and reaccredited for the appropriate IL, at a cost of more than [REDACTED] and resulting in an 18–24-month schedule delay.

5. COST/PRICE FAIR AND REASONABLE DETERMINATION:

Olympus Analytics Infrastructure

A determination that the price is fair and reasonable will be based on a comparison of the contractor's proposal to the independent government cost estimate and the JWCC Catalog pricing, including any discounts, which were previously found to be fair and reasonable and based on the contractor's commercial pricing.

6. MARKET RESEARCH:

Market research for the basic JWCC contracts was conducted and resulted in a signed market research report on November 9, 2021, that was revalidated and recertified on July 29, 2024, and September 29, 2026. After a survey of the market, it was concluded that use of the JWCC contract is in the Government's best interest due to technical feasibility and cost to the Government.

DISA J9 HC conducted market research on September 29, 2026, specific to this requirement by reviewing available capabilities in the JWCC contracts and it was determined that AWS is the only source capable of fulfilling the Government's minimum needs in the manner and time frame required. DISA HC received three responses to the additional research to support an exception to fair opportunity - from the CSPs: AWS, Microsoft, and Google. Oracle did not respond to the request. The market research results were as follows: Google does not meet all requirements as Google Vertex GenAI platform does not offer third-party models. For IoT, Google lists Pub/Sub, however Google IoT Core is not available at IL5. Microsoft does meet all requirements as Azure AI Foundry offers OpenAI, however it does not offer third-party models AWS offers a complete solution with its Bedrock service, which includes third-party AI models (e.g Meta Llama), and a full-featured IoT platform with AWS IoT Core.

7. ANY OTHER SUPPORTING FACTS: None.

8. ACTIONS THE AGENCY MAY TAKE TO REMOVE OR OVERCOME BARRIERS THAT LED TO THE EXCEPTION TO FAIR OPPORTUNITY:

- (a) The action proposed to remove barriers and avoid future exceptions to fair opportunity is to conduct market research on a regular basis and monitor IL5 approvals to identify services and offerings from the other CSPs that could be leveraged in the future. Demand for other CSPs will also be reassessed to see if a break-even offering would be feasible.
- (b) Procurement History: Not Applicable

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Olympus Analytics Infrastructure

TECHNICAL CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: David Lago

SIGNATURE:

TITLE/AGENCY/ORGANIZATION: Product Manager, DISA, J9 - HOSTING & COMPUTE (HC)

PHONE:

DATE:

REQUIREMENTS CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: David Lago

SIGNATURE:

TITLE/AGENCY/ORGANIZATION: Product Manager, DISA, J9 - HC

PHONE:

DATE:

CONTRACTING OFFICER CERTIFICATION: I certify that this justification is accurate and complete to the best of my knowledge and belief.

NAME: Lara K. Chiaurro

SIGNATURE:

TITLE/AGENCY/ORGANIZATION: Contracting Officer/DISA/DITCO/PS8511

PHONE:

DATE:

PROCURING ACTIVITY COMPETITION ADVOCATE APPROVAL: I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief.

Since this justification does not exceed [REDACTED], this review serves as approval and my written determination that the aforementioned FAR circumstances apply.

NAME: Andrea Horstmann

SIGNATURE:

TITLE/AGENCY/ORGANIZATION: PACA/DISA/DITCO

PHONE:

DATE:

ALL QUESTIONS REGARDING THIS JUSTIFICATION ARE TO BE REFERRED TO
Emelie Vandelloo, [REDACTED]